

Court No. - 37

Case :- WRIT - C No. - 27352 of 2013

Petitioner :- M/S Malhotra Ice Factory

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Nripendra Mishra

Hon'ble Sheo Kumar Singh,J.

Hon'ble Brijesh Kumar Srivastava-II,J.

Sri Rai placed the facts in respect of earlier writ petitions to submit that the earlier amount has also been included in the present bill and thus instruction is to be obtained in the light of the facts so stated in the writ petition and in the meantime according to own endorsement on the fresh bill (page 67 of the writ petition)petitioner is to deposit an amount of Rs. 3,00,000/-.

Sri Mishra is already there for the respondents and, therefore, he is to obtain instruction and apprise the court about correct facts in the light of the earlier litigation and the orders passed by this Court from time to time.

As prayed, put up this matter as fresh on 27.5.2013 along with record of writ petition no. 37741 of 2012.

In the meantime petitioner is directed to deposit an amount of Rs. 3 lakhs within a period of ten days from today. It is further directed that petitioner is to deposit the amount of the current bill as and when served upon him without any fail.

If the aforesaid amount is deposited within the time so allowed no further amount will be recovered from the petitioner.

Order Date :- 15.5.2013

Sachdeva

Court No. - 37

Case :- WRIT - C No. - 27352 of 2013

Petitioner :- M/S Malhotra Ice Factory

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And
Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Nripendra Mishra

Hon'ble Sheo Kumar Singh,J.

Hon'ble Brijesh Kumar Srivastava-II,J.

As prayed, put up this matter day after tomorrow i.e. 29.5.2013 as fresh.

Interim order to continue till then.

Order Date :- 27.5.2013

Puspendra

Court No. - 37

Case :- WRIT - C No. - 27352 of 2013

Petitioner :- M/S Malhotra Ice Factory

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Nripendra Mishra

Hon'ble Sheo Kumar Singh,J.

Hon'ble Brijesh Kumar Srivastava-II,J.

Counter affidavit filed by Sri Nripendra Mishra, learned counsel for the respondents is taken on record.

As prayed, list this matter in the 2nd week of July, 2013.

Till then, interim order shall remain in operation.

Order Date :- 29.5.2013

Shahid

Court No. - 40

Case :- WRIT - C No. - 27352 of 2013

Petitioner :- M/S Malhotra Ice Factory

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Nripendra Mishra, Chandan Agarwal, S.C.

AND

Case :- WRIT - C No. - 18411 of 2017

Petitioner :- Malhotra Ice Factory Thr. Its Proprietor

Respondent :- Pashchimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Harsh Kumar, J.

These two writ petitions have been filed by the petitioner disputing the correctness of the bills raised by the respondents and also for reconnecting the power supply of the petitioner which has been disconnected on account of the alleged default and non-payment of the electricity dues relating to the consumption of electricity by the petitioner Ice Factory.

Writ Petition No.27352 of 2013 has been filed praying for quashing of the disconnection notice dated 27.4.2013 as also the revised consolidated bill that had been issued pursuant to the direction of this Court.

The second writ petition namely Writ Petition No.18411 of 2017 has been filed praying for quashing of the revised demand bill dated 29.3.2017 and the notice dated 21.3.2017 with a further prayer to issue monthly bills and reconnect the electricity supply of the petitioner Ice Factory.

The background in which this dispute has arisen appears to have been an assessment order passed against the petitioner on 19.9.2006. The petitioner challenged the said assessment order on various grounds before this Court in Writ Petition No.59016 of 2006. The said writ petition was disposed of with a direction to the petitioner to file an objection against the assessment order to be decided by the Executive Engineer concerned within a period of three weeks. The petitioner was also called upon to deposit a sum of Rs.1,00,000/- (one lac) and that the petitioner will continue to pay his regular bills. The said judgment

dated 11.1.2007 is extracted herein under:-

"Supplementary affidavit filed today be kept on record.

Heard Sri B.C. Rai, learned counsel for the petitioner and Sri Nripendra Mishra, learned counsel for the respondents.

Against the assessment order dated 19.09.2006 (Annexure-12 to the writ petition), the petitioner has remedy of filing an objection.

In case the petitioner deposits a sum of Rs.1,00,000/- (one lac) along with an objection with the respondent no.2, Executive Engineer, Electricity Urban Distribution Division-III, Noida, Gautam Budha Nagar within a period of one week, the same shall be decided within a period of three weeks thereafter.

As soon as the petitioner deposits the aforesaid amount i.e. Rs.1,00,000/- (one lac), the electricity connection be restored within 24 Hours from the date of deposits. However, it is made clear that the petitioner will pay regular bill, which is being issued by the Corporation.

With the aforesaid direction, the writ petition is disposed of."

It appears that the consequential action that was taken by the Executive Engineer by passing a fresh assessment order was challenged by the petitioner in Writ Petition No.8029 of 2007. The said writ petition was disposed of after quashing the assessment order with a direction to proceed accordingly. The judgment is extracted herein under:-

"At the out set, Shri B.C. Rai, learned counsel for the petitioner states that he is not pressing 'prayer no.g' of the prayer portion of the writ petition whereunder vires of Chapter VIII clause 8.2 of Code, 2005 is challenged. We have heard learned counsel for the petitioner and Shri Nripendra Mishra, learned counsel appearing for the Power Corporation.

During the course of argument learned counsel fairly stated that the controversy involved in this petition stood concluded by the Division Bench of this Court in Ashok Kumar and others v. State of U.P. and others, 2008 (6) ADJ 660 (DB) of which one of us (Hon'ble Sudhir Agarwal, J.) was member. Our attention was also drawn to another Division Bench judgment of this Court in Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Limited and another (Civil Misc. Writ Petition No.1545 of 2009) decided on 15.1.2009 with respect to testing of meters wherein it has been held that after sealing the meter the Nigam must serve a notice intimating the consumer or his representative to exercise his option either to get th meter tested by the Electrical Inspector or at the laboratory of the Nigam to get his meter tested from one of the outside agencies approved by the Nigam mentioned in the notice. Once the consumer exercises his option then immediately a date has to be fixed for testing of the meter in the presence of the consumer.

In view of the aforesaid judgments, we quash the impugned order of assessment and remit the matter back to the concerned assessing authority to proceed afresh in the matter in accordance with the observations and directions given in Ashok Kumar (supra). We further provide that if the department wants to get the meter tested, it would be open to the petitioner to exercise option as per the procedure laid down in Smt. Amrawati Devi (supra) and the respondents shall proceed accordingly.

With the above order this petition stands finally disposed of."

The respondent department proceeded again to realize the amount assessed that had been challenged earlier without making adjustment of the amount which the petitioner alleged to have deposited during this period with the respondents. The same became subject matter of challenge in Writ Petition No.56721 of 2010 that was disposed of on 16.9.2010, calling upon the Executive Engineer to decide the representation of the petitioner subject to the directions contained therein. The said judgment is extracted herein under:-

"Heard learned counsel for the petitioner as well as Sri Tariq Naiyer, learned counsel appearing for the respondents and have perused the record.

With the consent of the learned counsel for the parties, this petition is being disposed of finally without calling for counter affidavit as no useful purpose would be served in keeping this petition pending in this Court.

The case of the petitioner is that earlier provisional bill was issued in response to which the petitioner had deposited a sum of over Rs. 9,00,000/- with the respondents-corporation. The said provisional assessment bill was challenged by the petitioner in Civil Misc.Writ Petition No. 8029 of 2007 which was finally allowed by a Division Bench of this Court vide order dated 9.11.2009. The petitioner thereafter filed an application before the Executive Engineer-respondent no.2 on 24.11.2009 either to refund the said amount already deposited by the petitioner or to adjust the same in future electricity bills. Thereafter fresh bills for the month of July and August, 2010 have been issued to the petitioner. The petitioner states that he has already paid the bill for July, 2010 on 2.8.2010. The petitioner does not dispute the liability to pay current bill. What the petitioner prays for is that the respondents-corporation should first adjust the deposit already made by the petitioner towards the provisional and final bills which were under challenge in the earlier Civil Misc.Writ Petition No. 8029 of 2007. The said writ petition was allowed on 9.11.2009 with the direction that the said amount first be adjusted towards the payment of bills and if any balance amount remains, the same shall be paid by the petitioner forthwith.

Sri Tariq Naiyer, learned counsel appearing for the respondents does not dispute the position that the petitioner would be entitled either to refund of the amount deposited earlier pursuant to the earlier assessment with regard to which his writ petition was allowed on 9.11.2009 or the said amount would be adjusted in the current bills.

Such being the position, this writ petition is finally disposed of with the direction to the respondent-Corporation to look into the matter in case the petitioner with regard to his grievance, files comprehensive representation annexing the copies of the relevant documents on which he relies upon along with the certified copy of this order before respondent no.2 within three weeks from today, the same shall be considered and decided by the said respondent in accordance with law by passing a reasoned and speaking order, as expeditiously as possible. Till the decision on the representation of the petitioner, the respondents shall not press the petitioner to pay any arrears but the petitioner shall be liable to deposit the current bill after assessment without arrears.

With the aforesaid observation/direction, the writ petition is finally disposed of."

After passing of the said order the Executive Engineer issued the revised electricity bill on 27.4.2013 along with the details which is impugned in Writ Petition No.27352 of 2013.

A Division Bench of this Court on 15.5.2013 passed the following interim order:-

"Sri Rai placed the facts in respect of earlier writ petitions to submit that the earlier amount has also been included in the present bill and thus instruction is to be obtained in the light of the facts so stated in the writ petition and in the meantime according to own endorsement on the fresh bill (page 67 of the writ petition)petitioner is to deposit an amount of Rs. 3,00,000/-.

Sri Mishra is already there for the respondents and, therefore, he is to obtain instruction and apprise the court about correct facts in the light of the earlier litigation and the orders passed by this Court from time to time.

As prayed, put up this matter as fresh on 27.5.2013 along with record of writ petition no. 37741 of 2012.

In the meantime petitioner is directed to deposit an amount of Rs. 3 lakhs within a period of ten days from today. It is further directed that petitioner is to deposit the amount of the current bill as and when served upon him without any fail.

If the aforesaid amount is deposited within the time so allowed no further amount will be recovered from the petitioner."

Thereafter a counter affidavit has been filed by the respondents and in paragraph 8 of the counter affidavit it has been alleged that since the petitioner did not deliberately cooperate, the matter could not be finally resolved by the competent authority of the concerned division. A rejoinder to the said counter affidavit has been filed today and details of certain deposit having been made, are indicated in paragraphs 4 & 5 of the rejoinder affidavit. The contention of the learned counsel for the petitioner is that the judgments of this Court have not been complied with in letter and spirit and no final order has been passed by the Executive Engineer in the light of the objections raised by the petitioner. It is during this period that a fresh revised bill appears to have been issued to the petitioner which is impugned in the second Writ Petition No.18411 of 2017 almost on the same grounds.

The aforesaid dispute is essentially a billing dispute and the authority competent to decide the same is the Executive Engineer in terms of Clause 6.5 of U.P. Electricity Supply Code, 2005.

We find that in the second writ petition an interim order was passed on 1.5.2017

which is extracted herein under:-

"There is a dispute with respect to bills of consumption of electrical energy. The petitioner had earlier approached this Court by filing writ petitions, which were disposed of by making certain directions and one of them being Writ Petition No.27352 of 2013 is still pending.

Learned counsel for the petitioner contends that without deciding the dispute in pursuance to the various orders passed by this Court all of a sudden a bill for a sum of Rs.70,97,590/- dated 4.3.2017 was raised. On a representation made by the petitioner subsequently the said bill was reduced to Rs.52,62,636/-. It is submitted by the learned counsel for the petitioner that there is absolutely no reason or justification given by the respondent for either raising a bill of more than Rs.70 lacs or reducing it to Rs.52 lacs nor any proper account is being maintained by them.

Learned counsel for the petitioner further submits that without issuance of any bill, which is mandatory under the provisions of Section 6(1)(e) & (g) of the Electricity Code, 2005 read with Section 56 of the Electricity Act, 2003, the electricity connection of the petitioner was disconnected. Though an amount of Rs.10 lacs was deposited by the petitioner on different dates in pursuance of a bill dated 2.11.2016 but the details of adjustment of the said amount has never been given to the petitioner.

The issue requires scrutiny.

Let a counter affidavit be filed within four weeks. Rejoinder affidavit, if any, be filed within two weeks thereafter.

List after expiry of the aforesaid period alongwith the record of Writ Petition No.27352 of 2013. It is further provided that if petitioner deposits a sum of Rs.7.5 lacs within a week from today, the electricity connection shall be restored."

In the given circumstances the dispute can be resolved if the matter is finally determined by the Executive Engineer keeping in view the aforesaid background of the case.

We, therefore, dispose of both the writ petitions with a direction to the Executive Engineer, Electricity Urban Distribution Division-V NOIDA, Gautam Budh Nagar to pass a final order after considering the objections as well as the directions issued by this Court from time to time within a period of two months from the date of production of the certified copy of the order before him.

The amount deposited by the petitioner shall be taken into account while passing the final order. The issue of re-connection shall be subject to the outcome of any such order being passed by the Executive Engineer as directed hereinabove.

With the aforesaid directions, both the writ petitions stand disposed of.

Order Date :- 23.10.2018

Kpy/VS